

		not cite cases for legal propositions different from those contained in the cases cited. [Citation.] And attorneys cannot delegate this responsibility to any form of technology; this is the responsibility of a competent attorney. [Citation.] ‘ “Honesty in dealing with the courts is of paramount importance, and misleading a judge is, regardless of motives, a serious offense.” ’ [Citation.]” (<i>People v. Alvarez</i> (2025) 114 Cal.App.5th 1115, 1119.) [R]elying on fabricated legal authority is sanctionable.” (<i>Noland, supra</i>, 114 Cal.App.5th at p. 445.) Here, it appears Defendant may have used AI for some portions of the Motion and did not check the work. Although most of the cases to which the quotes are attributed exist, the quotes do not. Further, some of the cases Defendant cites do not support the propositions for which they are cited, and one of the cited cases does not exist at all. For example, Defendant cites to <i>Dagher v. Ford Motor Co.</i> (2015) 238 Cal.App.4th 905, 917 (<i>Dagher</i>) stating that “the Court confirmed the Act’s refund/replacement remedies for breach of express warranty ‘extend only to new motor vehicles.’” (Motion, 8:8-11.) Although the case exists, the language quoted by Defendant is not contained in the <i>Dagher</i> opinion. Similarly, Defendant cites to <i>Nunez v. FCA US LLC</i> (2021) 61 Cal.App.5th 385 (<i>Nunez</i>) stating “the Court noted that Song-Beverly ‘maintains a distinction between sales of new and used goods.’” (Motion, 8:10-13.) Again, although the case exists, the language quoted by Defendant is also not contained in the <i>Nunez</i> opinion. Defendant also cites to <i>Kiluk v. Mercedes-Benz USA, LLC</i> (2019) 43 Cal.App.5th 334, 337 (<i>Kiluk</i>) stating that “the Court held that a manufacturer’s duty to repurchase or replace a vehicle ‘does not extend to used vehicles that are purchased after a prior lease.’” (Motion, 8:6-9.) The Court’s opinion in <i>Kiluk</i> does not contain the quoted language and the opinion in fact has nothing to do with leased vehicles as the vehicle in that case was not a lease buyout but a certified preowned vehicle. Lastly, Defendant in the moving papers cites <i>O’Neil v. FCA US LLC</i> (2021) 61 Cal.App.5th 421, 431 which Defendant admits in its Reply does not exist and withdraws the citation. (Reply, 4:24-26.) Plaintiffs’ counsel is ordered to appear and discuss the inaccuracies and discrepancies with the court at the hearing. If the court decides to issue an order to show cause, a separate hearing will be set. Moving Defendant to give notice.
13.	YOUNG VS. ADAMS 2022-01281968	MOTION FOR AN ORDER REQUIRING SECURITY Specially Appearing Defendants Collect Co, Ali Ammar aka John Adams, and Daniel Wall’s (erroneously sued as David Wall) Motion for an Order Requiring Security in the amount of \$150,000.00

pursuant to Code Civil Procedure section 391.1, subdivision (a) is GRANTED.

Defendants' Request for Judicial Notice

Defendants request judicial notice of the following documents:

- Exhibit A - The order of the Orange County Superior Court issued on October 3, 2024 in *Young v. Byars, et al.* (Case No. 30-2017-00924659-CU-FR-CJC).
- Exhibit B - The order of the United States District Court for the Central District of California issued on May 11, 2026 in the case of *Young v. Griffin, et al.* (Case No. 8:25-cv 00762-MRA-ADS).

A court may take judicial notice of records of any court of this state, of the United States, or of any state of the United States. (Evid. Code § 452, subd. (d).) While “[a] court may take judicial notice of the *existence* of each document a court file, [it] can only take judicial notice of the *truth* of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments.” (*People v. Thacker* (1985) 175 Cal.App.3d 594, 599 [citation omitted, italics in original].)

The Court GRANTS Defendants’ request for judicial notice.

Legal Standard

Code of Civil Procedure section 391.1 provides:

In any litigation pending in any court of this state, at any time until final judgment is entered, a defendant may move the court, upon notice and hearing, for an order requiring the plaintiff to furnish security or for an order dismissing the litigation pursuant to subdivision (b) of Section 391.3. The motion for an order requiring the plaintiff to furnish security shall be based upon the ground, and supported by a showing, that the plaintiff is a vexatious litigant and that there is not a reasonable probability that they will prevail in the litigation against the moving defendant.

“When considering a motion to declare a litigant vexatious under section 391.1, the trial court performs an evaluative function. The court must weigh the evidence to decide both whether the party is vexatious based on the statutory criteria and whether he or she has a reasonable probability of prevailing.” (*Golin v. Allenby* (2010) 190 Cal.App.4th 616, 635 [citation omitted].) “Accordingly, the court does not assume the truth of a litigant’s factual allegations and it may receive and weigh evidence before deciding whether the litigant has a reasonable chance of prevailing. (*Ibid.* [citation omitted].) The burden on the motion is on the moving party to show the plaintiff